

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1723
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-3602, Arizona Revised Statutes, is amended to
3 read:

4 13-3602. Order of protection; procedure; contents; arrest for
5 violation; penalty; protection order from another
6 jurisdiction; definition

7 A. A person may file a verified petition, as in civil actions, with
8 a magistrate, justice of the peace or superior court judge for an order of
9 protection for the purpose of restraining a person from committing an act
10 included in domestic violence. If the person is a minor, the parent,
11 legal guardian or person who has legal custody of the minor shall file the
12 petition unless the court determines otherwise. The petition shall name
13 the parent, guardian or custodian as the plaintiff and the minor is a
14 specifically designated person for the purposes of subsection G of this
15 section. If a person is either temporarily or permanently unable to
16 request an order, a third party may request an order of protection on
17 behalf of the plaintiff. After the request, the judicial officer shall
18 determine if the third party is an appropriate requesting party for the
19 plaintiff. For the purposes of this section, notwithstanding the location
20 of the plaintiff or defendant, any court in this state may issue or
21 enforce an order of protection.

22 B. An order of protection shall not be granted:

23 1. Unless the party who requests the order files a written verified
24 petition for an order.

25 2. Against a person who is less than twelve years of age unless the
26 order is granted by the juvenile division of the superior court.

27 3. Against more than one defendant.

28 C. The petition shall state the:

1 1. Name of the plaintiff. The plaintiff's address and contact
2 information shall be disclosed to the court for purposes of service and
3 notification. The address and contact information shall not be listed on
4 the petition. Whether or not the court issues an order of protection, the
5 plaintiff's address and contact information shall be maintained in a
6 separate document or automated database and is not subject to release or
7 disclosure by the court or any form of public access except as ordered by
8 the court.

9 2. Name and address, if known, of the defendant.

10 3. Specific statement, including dates, of the domestic violence
11 alleged.

12 4. Relationship between the parties pursuant to section 13-3601,
13 subsection A and whether there is pending between the parties an action
14 for maternity or paternity, annulment, legal separation or dissolution of
15 marriage.

16 5. Name of the court in which any prior or pending proceeding or
17 order was sought or issued concerning the conduct that is sought to be
18 restrained.

19 6. Desired relief.

20 D. A fee shall not be charged for filing a petition under this
21 section or for service of process. Each court shall provide, without
22 charge, forms for purposes of this section for assisting parties without
23 counsel. The court shall make reasonable efforts to provide the
24 appropriate information to both parties on emergency and counseling
25 services that are available in the local area.

26 E. The court shall review the petition, any other pleadings on file
27 and any evidence offered by the plaintiff, including any evidence of
28 harassment by electronic contact or communication, to determine whether
29 the orders requested should issue without further hearing. The court
30 shall issue an order of protection under subsection G of this section if
31 the court determines that there is reasonable cause to believe any of the
32 following:

33 1. The defendant may commit an act of domestic violence.

34 2. The defendant has committed an act of domestic violence within
35 the past year or within a longer period of time if the court finds that
36 good cause exists to consider a longer period.

37 F. For the purposes of determining the period of time under
38 subsection E, paragraph 2 of this section, any time that the defendant has
39 been incarcerated or out of this state shall not be counted. If the court
40 denies the requested relief, it may schedule a further hearing within ten
41 days, with reasonable notice to the defendant.

42 G. If a court issues an order of protection, the court may do any
43 of the following:

44 1. Enjoin the defendant from committing a violation of one or more
45 of the offenses included in domestic violence.

46 2. Grant one party the use and exclusive possession of the parties'
47 residence on a showing that there is reasonable cause to believe that

1 physical harm may otherwise result. If the other party is accompanied by
2 a law enforcement officer, the other party may return to the residence on
3 one occasion to retrieve belongings. A law enforcement officer is not
4 liable for any act or omission in the good faith exercise of the officer's
5 duties under this paragraph. While the order of protection is in effect,
6 if a party was granted the use and exclusive possession of the parties'
7 residence and subsequently moves out of the ~~house~~ RESIDENCE, the party
8 must file a notice in writing with the court within five days after moving
9 out of the residence. After receiving the notification from the
10 plaintiff, the court shall provide notice to the defendant that the
11 plaintiff has moved out of the residence and of the defendant's right to
12 request a hearing pursuant to subsection L of this section.

13 3. Restrain the defendant from contacting the plaintiff or other
14 specifically designated persons and from coming near the residence, place
15 of employment or school of the plaintiff or other specifically designated
16 locations or persons on a showing that there is reasonable cause to
17 believe that physical harm may otherwise result.

18 4. If the court finds that the defendant is a credible threat to
19 the physical safety of the plaintiff or other specifically designated
20 persons, prohibit the defendant from possessing or purchasing a firearm
21 for the duration of the order. If the court prohibits the defendant from
22 possessing a firearm, the court shall also order the defendant to transfer
23 any firearm owned or possessed by the defendant immediately after service
24 of the order to the appropriate law enforcement agency for the duration of
25 the order. If the defendant does not immediately transfer the firearm,
26 the defendant shall transfer the firearm within twenty-four hours after
27 service of the order.

28 5. If the order was issued after notice and a hearing at which the
29 defendant had an opportunity to participate, require the defendant to
30 complete a domestic violence offender treatment program that is provided
31 by a facility approved by the department of health services or a probation
32 department or any other program deemed appropriate by the court.

33 6. Grant relief that is necessary for the protection of the alleged
34 victim and other specifically designated persons and that is proper under
35 the circumstances.

36 7. Grant the plaintiff the exclusive care, custody or control of
37 any animal that is owned, possessed, leased, kept or held by the
38 plaintiff, the defendant or a minor child residing in the residence or
39 household of the plaintiff or the defendant, and order the defendant to
40 stay away from the animal and forbid the defendant from taking,
41 transferring, encumbering, concealing, committing an act of cruelty or
42 neglect in violation of section 13-2910 or otherwise disposing of the
43 animal.

44 8. REQUIRE THE DEFENDANT TO PROVIDE IDENTIFYING INFORMATION TO THE
45 PLAINTIFF, INCLUDING THE DEFENDANT'S RESIDENCE, PLACE OF EMPLOYMENT OR
46 VEHICLE INFORMATION, ON A SHOWING THAT THERE IS REASONABLE CAUSE TO
47 BELIEVE THAT PHYSICAL HARM MAY OTHERWISE RESULT.

1 H. The court shall not grant a mutual order of protection. If
2 opposing parties separately file verified petitions for an order of
3 protection, the courts after consultation between the judges involved may
4 consolidate the petitions of the opposing parties for hearing. This does
5 not prohibit a court from issuing cross orders of protection.

6 I. After granting an order of protection, the court shall provide
7 the order to a law enforcement agency or a constable as set forth in
8 subsection J of this section for service or to an entity that is
9 authorized in subsection K of this section to serve process. The agency
10 or entity serving the order shall provide confirmation of service to the
11 plaintiff as soon as practicable. If service of an order cannot be
12 completed within fifteen days after the agency or entity receives the
13 order, the agency or entity that is attempting service shall notify the
14 plaintiff and continue to attempt service. This notification may be
15 completed by a victim notification system, if available.

16 J. If the order of protection is provided to a law enforcement
17 agency or a constable, service of an order of protection is as follows:

18 1. For each order of protection that is issued by a municipal
19 court, if the defendant can be served within that city or town, the order
20 shall be served by the law enforcement agency of that city or town. If
21 the order can be served in another city or town, the order shall be served
22 by the law enforcement agency of that city or town. If the order cannot
23 be served within a city or town, the order shall be served by the sheriff
24 or constable of the county in which the defendant can be served.

25 2. For each order of protection that is issued by a justice of the
26 peace, the order of protection shall be served by the sheriff or constable
27 of the county in which the defendant can be served or by a municipal law
28 enforcement agency.

29 3. For each order of protection that is issued by a superior court
30 judge or commissioner, the order of protection shall be served by the
31 sheriff or constable of the county where the defendant can be served.

32 K. In addition to persons authorized to serve process pursuant to
33 rule 4(d) of the Arizona rules of civil procedure, a peace officer or a
34 correctional officer as defined in section 41-1661 who is acting in the
35 officer's official capacity may serve an order of protection that is
36 issued pursuant to this section. Service of the order of protection has
37 priority over other service of process that does not involve an immediate
38 threat to the safety of a person.

39 L. At any time during the period during which the order is in
40 effect, a party who is under an order of protection or who is restrained
41 from contacting the other party is entitled to one hearing on written
42 request. No fee may be charged for requesting a hearing. A hearing that
43 is requested by a party who is under an order of protection or who is
44 restrained from contacting the other party shall be held within ten days
45 from the date requested unless the court finds good cause to continue the
46 hearing. If exclusive use of the home is awarded, the hearing shall be
47 held within five days from the date requested. The hearing shall be held

1 at the earliest possible time. An ex parte order that is issued under
2 this section shall state on its face that the defendant is entitled to a
3 hearing on written request and shall include the name and address of the
4 judicial office where the request may be filed. After the hearing, the
5 court may modify, quash or continue the order. If the exclusive use of
6 the home is awarded to the party, the court, on written request of a
7 party, may hold additional hearings at any time if there is a change in
8 circumstances related to the primary residence.

9 M. The order shall include the following statement:

10 Warning

11 This is an official court order. If you disobey this
12 order, you will be subject to arrest and prosecution for the
13 crime of interfering with judicial proceedings and any other
14 crime you may have committed in disobeying this order.

15 N. An order of protection that is not served on the defendant
16 within one year after the date that the order is issued expires. An order
17 is effective on the defendant on service of a copy of the order and
18 petition. An order expires two years after service on the defendant. A
19 modified order is effective on service and expires two years after service
20 of the initial order and petition.

21 O. A supplemental information form that is used by the court or a
22 law enforcement agency solely for the purposes of service of process on
23 the defendant and that contains information provided by the plaintiff is
24 confidential.

25 P. Each affidavit, declaration, acceptance or return of service
26 shall be filed as soon as practicable but not later than seventy-two
27 hours, excluding weekends and holidays, with the clerk of the issuing
28 court or as otherwise required by court rule. This filing shall be
29 completed in person, electronically or by fax.

30 Q. The supreme court shall maintain a central repository for orders
31 of protection. Within twenty-four hours after the affidavit, declaration,
32 acceptance or return of service has been filed, excluding weekends and
33 holidays, the court from which the order or any modified order was issued
34 shall enter the order and proof of service into the supreme court's
35 central repository for orders of protection. The supreme court shall
36 register the order with the national crime information center. The
37 effectiveness of an order does not depend on its registration, and for
38 enforcement purposes pursuant to section 13-2810, a copy of an order of
39 the court, whether or not registered, is presumed to be a valid existing
40 order of the court for a period of two years from the date of service of
41 the order on the defendant.

42 R. A peace officer, with or without a warrant, may arrest a person
43 if the peace officer has probable cause to believe that the person has
44 violated section 13-2810 by disobeying or resisting an order that is
45 issued in any jurisdiction in this state pursuant to this section, whether
46 or not such violation occurred in the presence of the officer. Criminal
47 violations of an order issued pursuant to this section shall be referred

1 to an appropriate law enforcement agency. The provisions for release
2 under section 13-3883, subsection A, paragraph 4 and section 13-3903 do
3 not apply to an arrest made pursuant to this section. For the purposes of
4 this section, any court in this state has jurisdiction to enforce a valid
5 order of protection that is issued in this state and that has been
6 violated in any jurisdiction in this state.

7 S. A person who is arrested pursuant to subsection R of this
8 section may be released from custody in accordance with the Arizona rules
9 of criminal procedure or any other applicable statute. An order for
10 release, with or without an appearance bond, shall include pretrial
11 release conditions that are necessary to provide for the protection of the
12 alleged victim and other specifically designated persons and may provide
13 for any other additional conditions that the court deems appropriate,
14 including participation in any counseling programs available to the
15 defendant. The agency with custody of the defendant shall make reasonable
16 efforts to contact the victim and other specifically designated persons in
17 the order of protection, if known to the custodial agency, who requested
18 notification immediately on release of the arrested person from custody.

19 T. The remedies provided in this section for enforcement of the
20 orders of the court are in addition to any other civil and criminal
21 remedies available. The superior court shall have exclusive jurisdiction
22 to issue orders of protection in all cases if it appears from the petition
23 that an action for maternity or paternity, annulment, legal separation or
24 dissolution of marriage is pending between the parties. A municipal court
25 or justice court shall not issue an order of protection if it appears from
26 the petition that an action for maternity or paternity, annulment, legal
27 separation or dissolution of marriage is pending between the parties.
28 After issuance of an order of protection, if the municipal court or
29 justice court determines that an action for maternity or paternity,
30 annulment, legal separation or dissolution of marriage is pending between
31 the parties, the municipal court or justice court shall stop further
32 proceedings in the action and forward all papers, together with a
33 certified copy of docket entries or any other record in the action, to the
34 superior court where they shall be docketed in the pending superior court
35 action and shall proceed as though the petition for an order of protection
36 had been originally brought in the superior court. Notwithstanding any
37 other law and unless prohibited by an order of the superior court, a
38 municipal court or justice court may hold a hearing on all matters
39 relating to its ex parte order of protection if the hearing was requested
40 before receiving written notice of the pending superior court action. ~~NO~~
41 ~~AN~~ order of protection shall ~~NOT~~ be invalid or determined to be
42 ineffective merely because it was issued by a lower court at a time when
43 an action for maternity or paternity, annulment, legal separation or
44 dissolution of marriage was pending in a higher court. After a hearing
45 with notice to the affected party, the court may enter an order requiring
46 any party to pay the costs of the action, including reasonable attorney
47 fees, if any. An order that is entered by a justice court or municipal

1 court after a hearing pursuant to this section may be appealed to the
2 superior court as provided in title 22, chapter 2, article 4, section
3 22-425, subsection B and the superior court rules of civil appellate
4 procedure without regard to an amount in controversy. ~~No~~ A fee may NOT be
5 charged to either party for filing an appeal. For the purposes of this
6 subsection, "pending" means, with respect to an action for annulment,
7 legal separation or dissolution of marriage or for maternity or paternity,
8 either that:

9 1. An action has been commenced but a final judgment, decree or
10 order has not been entered.

11 2. A post-decree proceeding has been commenced but a judgment,
12 decree or order finally determining the proceeding has not been entered.

13 U. A peace officer who makes an arrest pursuant to this section or
14 section 13-3601 is not civilly or criminally liable for the arrest if the
15 officer acts on probable cause and without malice.

16 V. A valid protection order that is related to domestic or family
17 violence and that is issued by a court in another state, a court of a
18 United States territory or a tribal court shall be accorded full faith and
19 credit and shall be enforced as if it were issued in this state for as
20 long as the order is effective in the issuing jurisdiction. For the
21 purposes of this subsection:

22 1. A protection order includes any injunction or other order that
23 is issued for the purpose of preventing violent or threatening acts or
24 harassment against, contact or communication with or physical proximity to
25 another person. A protection order includes temporary and final orders
26 other than support or child custody orders that are issued by civil and
27 criminal courts if the order is obtained by the filing of an independent
28 action or is a pendente lite order in another proceeding. The civil order
29 shall be issued in response to a complaint, petition or motion that was
30 filed by or on behalf of a person seeking protection.

31 2. A protection order is valid if the issuing court had
32 jurisdiction over the parties and the matter under the laws of the issuing
33 state, a United States territory or an Indian tribe and the person against
34 whom the order was issued had reasonable notice and an opportunity to be
35 heard. If the order is issued ex parte, the notice and opportunity to be
36 heard shall be provided within the time required by the laws of the
37 issuing state, a United States territory or an Indian tribe and within a
38 reasonable time after the order was issued.

39 3. A mutual protection order that is issued against both the party
40 who filed a petition or a complaint or otherwise filed a written pleading
41 for protection against abuse and the person against whom the filing was
42 made is not entitled to full faith and credit if either:

43 (a) The person against whom an initial order was sought has not
44 filed a cross or counter petition or other written pleading seeking a
45 protection order.

46 (b) The issuing court failed to make specific findings supporting
47 the entitlement of both parties to be granted a protection order.

1 4. A peace officer may presume the validity of and rely on a copy
2 of a protection order that is issued by another state, a United States
3 territory or an Indian tribe if the order was given to the officer by any
4 source. A peace officer may also rely on the statement of any person who
5 is protected by the order that the order remains in effect. A peace
6 officer who acts in good faith reliance on a protection order is not
7 civilly or criminally liable for enforcing the protection order pursuant
8 to this section.

9 W. For the purposes of this section, "victim notification system"
10 means an automated system that may provide plaintiffs and crime victims
11 with an automated notification regarding the person's case.

12 Sec. 2. Section 13-3967, Arizona Revised Statutes, is amended to
13 read:

14 13-3967. Release on bailable offenses before trial;
15 definition

16 A. At his appearance before a judicial officer, any person who is
17 charged with a public offense that is bailable as a matter of right shall
18 be ordered released pending trial on his own recognizance or on the
19 execution of bail in an amount specified by the judicial officer.

20 B. In determining the method of release or the amount of bail, the
21 judicial officer, on the basis of available information, shall take into
22 account all of the following:

23 1. The views of the victim.

24 2. The nature and circumstances of the offense charged.

25 3. Whether the accused has a prior arrest or conviction for a
26 serious offense or violent or aggravated felony as defined in section
27 13-706 or an offense in another state that would be a serious offense or
28 violent or aggravated felony as defined in section 13-706 if committed in
29 this state.

30 4. Evidence that the accused poses a danger to others in the
31 community.

32 5. The results of a risk or lethality assessment in a domestic
33 violence charge that is presented to the court.

34 6. The weight of evidence against the accused.

35 7. The accused's family ties, employment, financial resources,
36 character and mental condition.

37 8. The results of any drug test submitted to the court.

38 9. Whether the accused is using any substance if its possession or
39 use is illegal pursuant to chapter 34 of this title.

40 10. Whether the accused violated section 13-3407, subsection A,
41 paragraph 2, 3, 4 or 7 involving methamphetamine or section 13-3407.01.

42 11. The length of residence in the community.

43 12. The accused's record of arrests and convictions.

44 13. The accused's record of appearance at court proceedings or of
45 flight to avoid prosecution or failure to appear at court proceedings.

46 14. Whether the accused has entered or remained in the United
47 States illegally.

1 15. Whether the accused's residence is in this state, in another
2 state or outside the United States.

3 C. If a judicial officer orders the release of a defendant who is
4 charged with a felony either on his own recognizance or on bail, the
5 judicial officer shall condition the defendant's release on the
6 defendant's good behavior while so released. On a showing of probable
7 cause that the defendant committed any offense during the period of
8 release, a judicial officer may revoke the defendant's release pursuant to
9 section 13-3968.

10 D. After providing notice to the victim pursuant to section
11 13-4406, a judicial officer may impose any of the following conditions on
12 a person who is released on his own recognizance or on bail:

13 1. Place the person in the custody of a designated person or
14 organization agreeing to supervise him.

15 2. Place restrictions on the person's travel, associates or place
16 of abode during the period of release.

17 3. Require the deposit with the clerk of the court of cash or other
18 security, such deposit to be returned on the performance of the conditions
19 of release.

20 4. Prohibit the person from possessing any deadly weapon or
21 engaging in certain described activities or indulging in intoxicating
22 liquors or certain drugs.

23 5. Require the person to report regularly to and remain under the
24 supervision of an officer of the court.

25 6. Impose any other conditions deemed reasonably necessary to
26 assure appearance as required including a condition requiring that the
27 person return to custody after specified hours.

28 E. In addition to any of the conditions a judicial officer may
29 impose pursuant to subsection D of this section, the judicial officer
30 shall impose both of the following conditions on a person who is charged
31 with a felony violation of chapter 14 or 35.1 of this title or section
32 13-3212 OR AN OFFENSE INVOLVING DOMESTIC VIOLENCE AS DEFINED IN SECTION
33 13-3601 and who is released on his own recognizance or on bail:

34 1. Electronic monitoring where available.

35 2. A condition prohibiting the person from having any contact with
36 the victim.

37 F. The judicial officer who authorizes the release of the person
38 charged on his own recognizance or on bail shall do all of the following:

39 1. Issue an appropriate order containing statements of the
40 conditions imposed.

41 2. Inform the person of the penalties that apply to any violation
42 of the conditions of release.

43 3. Advise the person that a warrant for his arrest may be issued
44 immediately on any violation of the conditions of release, including the
45 failure to submit to deoxyribonucleic acid testing ordered pursuant to
46 paragraph 4 of this subsection.

1 4. If the person is charged with a felony or misdemeanor offense
2 listed in section 13-610, subsection 0, paragraph 3 and is summoned to
3 appear, order the person to report within five days to the law enforcement
4 agency that arrested the person or to the agency's designee and submit a
5 sufficient sample of buccal cells or other bodily substances for
6 deoxyribonucleic acid testing and extraction. If a person does not comply
7 with an order issued pursuant to this paragraph, the court shall revoke
8 the person's release.

9 G. At any time after providing notice to the victim pursuant to
10 section 13-4406, the judicial officer who orders the release of a person
11 on any condition specified in this section or the court in which a
12 prosecution is pending may amend the order to employ additional or
13 different conditions of release, including either an increase or reduction
14 in the amount of bail. On application, the defendant shall be entitled to
15 have the conditions of release reviewed by the judicial officer who
16 imposed them or by the court in which the prosecution is pending.
17 Reasonable notice of the application shall be given to the county attorney
18 and the victim.

19 H. Any information that is stated or offered in connection with any
20 order pursuant to this section need not conform to the rules pertaining to
21 admissibility of evidence in a court of law.

22 I. This section does not prevent the disposition of any case or
23 class of cases by forfeiture of bail or collateral security if such
24 disposition is authorized by the court.

25 J. A judicial officer who orders the release of a juvenile who is
26 enrolled in a school and who has been transferred to the criminal division
27 of the superior court pursuant to section 8-327 or who has been charged as
28 an adult pursuant to section 13-501 shall notify the appropriate school on
29 the release of the juvenile from custody.

30 K. For the purposes of this section and section 13-3968, "judicial
31 officer" means any person or court authorized pursuant to the constitution
32 or laws of this state to bail or otherwise release a person before trial
33 or sentencing or pending appeal.

34 <<Sec. 3. Section 25-403.03, Arizona Revised Statutes, is amended
35 to read:

36 25-403.03. Domestic violence; court considerations;
37 presumption; conditions on parenting time;
38 definition

39 A. Notwithstanding [subsection] [SUBSECTIONS] D [AND F] of this
40 section, [NEITHER] joint legal decision-making [NOR UNSUPERVISED PARENTING
41 TIME] shall [not] be awarded if the court makes a finding of the existence
42 of significant domestic violence pursuant to section 13-3601 or if the
43 court finds by a preponderance of the evidence that there has been a
44 significant history of domestic violence. [TO DETERMINE WHETHER
45 SIGNIFICANT DOMESTIC VIOLENCE OR A SIGNIFICANT HISTORY OF DOMESTIC
46 VIOLENCE HAS OCCURRED, THE COURT SHALL CONSIDER ALL OF THE FOLLOWING:

1 1. THE SERIOUSNESS OF THE PARTICULAR ACT OR ACTS OF DOMESTIC
2 VIOLENCE.

3 2. THE FREQUENCY OR PERVASIVENESS OF THE ACT OR ACTS OF DOMESTIC
4 VIOLENCE.

5 3. THE AMOUNT OF TIME SINCE THE ACT OR ACTS OF DOMESTIC VIOLENCE
6 OCCURRED.

7 4. THE IMPACT OF THE ACT OR ACTS OF DOMESTIC VIOLENCE.]

8 B. The court shall consider evidence of domestic violence as being
9 contrary to the best interests of the child. The court shall consider the
10 safety and well-being of the child [TO BE THE CONTROLLING FACTOR IN ANY
11 DETERMINATION OF LEGAL DECISION-MAKING OR PARENTING TIME MATTER] and [THE
12 SAFETY] of the victim of the act of domestic violence to be of primary
13 importance. The court shall consider a perpetrator's history of causing
14 or threatening to cause physical harm to another person.

15 C. To determine if a person has committed an act of domestic
16 violence the court, subject to the rules of evidence, shall consider all
17 relevant factors~~[.]~~ including the following:

18 1. Findings from another court of competent jurisdiction.

19 2. Police reports.

20 3. Medical reports.

21 4. Records of the department of child safety.

22 5. Domestic violence shelter records.

23 6. School records.

24 7. Witness testimony.

25 D. If the court determines that a parent who is seeking sole or
26 joint legal decision-making has committed an act of domestic violence
27 against the other parent, there is a rebuttable presumption that an award
28 of sole or joint legal decision-making to the parent who committed the act
29 of domestic violence is contrary to the child's best interests. This
30 presumption does not apply if both parents have committed an act of
31 domestic violence. For the purposes of this subsection, a person commits
32 an act of domestic violence if that person does any of the following:

33 1. Intentionally, knowingly or recklessly causes or attempts to
34 cause sexual assault or serious physical injury.

35 2. Places a person in reasonable apprehension of imminent serious
36 physical injury to any person.

37 3. Engages in a pattern of behavior for which a court may issue an
38 ex parte order to protect the other parent who is seeking child custody or
39 to protect the child and the child's siblings.

40 E. To determine ~~[if]~~ [WHETHER] the parent has rebutted the
41 presumption [PRESCRIBED IN SUBSECTION D OF THIS SECTION.] the court shall
42 consider all of the following:

43 1. Whether the parent has demonstrated that being awarded sole or
44 joint legal decision-making or substantially equal parenting time is in
45 the child's best interests.

46 ~~[2. Whether the parent has successfully completed a batterer's~~
47 ~~prevention program.]~~

~~3. Whether the parent has successfully completed a program of alcohol or drug abuse counseling, if the court determines that counseling is appropriate.~~

~~4. Whether the parent has successfully completed a parenting class, if the court determines that a parenting class is appropriate.]~~

[5.] [2.] If the parent is on probation, parole or community supervision, whether the parent is restrained by a protective order that was granted after a hearing.

[6.] [3.] Whether the parent has committed any further acts of domestic violence.

[4. WHETHER THE PARENT HAS COMPLETED ANY OF THE FOLLOWING PROGRAMS OR CLASSES. BUT THE COURT MAY NOT CONSIDER THE COMPLETION OF ANY PROGRAM OR CLASS ALONE AS PROOF OF REHABILITATION OR THAT THE PARENT HAS REBUTTED THE PRESUMPTION PRESCRIBED IN SUBSECTION D OF THIS SECTION:

(a) A DOMESTIC VIOLENCE PROGRAM.

(b) AN ALCOHOL OR DRUG ABUSE COUNSELING PROGRAM.

(c) A PARENTING CLASS.]

F. If the court finds that a parent has committed an act of domestic violence, that parent has the burden of proving to the court's satisfaction that parenting time will not endanger the child or significantly impair the child's emotional development. If the parent meets this burden to the court's satisfaction, the court shall place conditions on parenting time that best protect the child and the other parent from further harm. The court may:

1. Order that an exchange of the child must occur in a protected setting as specified by the court.

2. Order that an agency specified by the court must supervise parenting time. If the court allows a family or household member to supervise parenting time, the court shall establish conditions that this person must follow during parenting time.

3. Order the parent who committed the act of domestic violence to attend and complete, to the court's satisfaction, a program of intervention for perpetrators of domestic violence and any other counseling the court orders.

4. Order the parent who committed the act of domestic violence to abstain from possessing or consuming alcohol or controlled substances during parenting time and for twenty-four hours before parenting time.

5. Order the parent who committed the act of domestic violence to pay a fee for the costs of supervised parenting time.

6. Prohibit overnight parenting time.

7. Require a bond from the parent who committed the act of domestic violence for the child's safe return.

8. Order that the address of the child and the other parent remain confidential.

9. Impose any other condition that the court determines is necessary to protect the child, the other parent and any other family or household member.

1 G. The court shall not order joint counseling between a victim and
2 the perpetrator of domestic violence. The court may provide a victim with
3 written information about available community resources related to
4 domestic violence.

5 H. The court may request or order the services of the department of
6 child safety if the court believes that a child may be the victim of child
7 abuse or neglect as defined in section 8-201.

8 I. In determining whether the absence or relocation of a parent
9 shall be weighed against that parent in determining legal decision-making
10 or parenting time, the court may consider whether the absence or
11 relocation was caused by an act of domestic violence by the other parent.

12 [J. FOR THE PURPOSES OF THIS SECTION, "SIGNIFICANT DOMESTIC
13 VIOLENCE" INCLUDES, BUT IS NOT LIMITED TO, EITHER OF THE FOLLOWING:

14 1. THE THREATENED, RISKED OR INFLICTED PHYSICAL INJURY OR EMOTIONAL
15 TRAUMA BY A PARENT ON A CHILD OR THE OTHER PARENT.

16 2. AN ACT OR ACTS BY A PARENT THAT INVOLVE THE THREAT, USE OR
17 BRANDISHING OF A FIREARM OR OTHER DANGEROUS WEAPON TO THREATEN OR
18 INTIMIDATE A CHILD OR THE OTHER PARENT.]>>

19 Enroll and engross to conform

20 Amend title to conform

1723JUDE.docx

02/19/2026

8:37 AM

C: LAT

130CDCJAJ